

A
M E A S U R E

PASSED BY

The National Assembly of the Church of England

To confer powers on Parochial Church Councils and to amend the law relating to the parochial organisation of the Church of England and for other purposes connected therewith.

[1st July 1921.]

WHEREAS by the Constitution of the National Assembly of the Church of England as defined in the Church of England Assembly (Powers) Act 1919 it is provided (amongst other things) that the said Assembly shall before entering on any other legislative business make further provision for the self-government of the Church by passing through the Assembly Measures inter alia for conferring on the Parochial Church Councils constituted under the Schedule to such Constitution such powers as the Assembly may determine.

1. In this Measure—

Definitions

The "Church Assembly" means the National Assembly of the Church of England constituted in accordance with the Constitution set forth in the Appendix to the Addresses presented to His Majesty by the Convocations of Canterbury and York on the 10th day of May 1919 and laid before both Houses of Parliament (hereinafter referred to as "the Constitution");

"Council" means a Parochial Church Council constituted in accordance with the Constitution;

The expressions "Parish" and "Diocesan Conference" have the same meaning as in the

Constitution and the expression "Diocesan Conference" shall include any committee or committees of the Conference appointed for any of the purposes of this Measure;

The expression "Diocesan Authority" means the Diocesan Board of Finance or any existing or future body appointed by the Diocesan Conference to act as Trustees of Diocesan trust property;

The expression "Incumbent" means a Rector Vicar or Perpetual Curate of a parish or the Curate in charge of a parish;

The expression "Benefice" comprehends all rectories with cure of souls vicarages perpetual curacies endowed public chapels and parochial chapelries and chapelries or districts belonging or reputed to belong or annexed or reputed to be annexed to any church or chapel and districts formed for ecclesiastical purposes by virtue of statutory authority and includes benefices in the patronage of the Crown or of the Duchy of Cornwall but does not extend to any of His Majesty's Royal Chapels or to any Royal peculiar nor to any cathedral or capitular preferment or dignity nor to any chapel belonging to any college school hospital inn of court asylum or public or charitable institution nor to any private chapel.

General
functions of
Council.

2. It shall be the primary duty of the Council in every parish to co-operate with the Incumbent in the initiation conduct and development of Church work both within the parish and outside.

Council to
be a body
corporate.

3. Every Council shall be a body corporate by the name of the Parochial Church Council of the parish for which they are appointed and shall have perpetual succession Any Act of the Council may be signified by an instrument executed at a meeting of the Council and under the hands or if an instrument under seal is required under the hands and seals of the chairman presiding at the meeting and two other members of the Council.

4.—(1) From the commencement of this Measure there shall be transferred to the Council of every parish— Powers transferred to Council.

(i) All powers duties and liabilities of the Vestry of such parish relating to the affairs of the Church except as regards the election of churchwardens and sidesmen and as regards the administration of ecclesiastical charities but including the power of presentation to the benefice of such parish if the right to present thereto is vested in or in trust for the parishioners and the power of making any voluntary Church rate.

(ii) All powers duties and liabilities of the churchwardens of such parish relating to—

(a) The financial affairs of the Church including the collection and administration of all moneys which may be raised for Church purposes and the keeping of accounts in relation to such affairs and moneys;

(b) The care maintenance preservation and insurance of the fabric of the church and the goods and ornaments thereof;

(c) The care and maintenance of the churchyard (including a closed churchyard) with all rights now possessed by the churchwardens to recover from the overseers the cost of maintaining a closed churchyard:

Provided that nothing herein contained shall affect the property of the churchwardens in the goods and ornaments of the church or their powers duties and liabilities with respect to visitations.

(iii) All powers duties and liabilities of the Church Trustees (if any) for the parish appointed under the Compulsory Church Rate Abolition Act 1868.

(2) All enactments in any Act whether general or local or personal relating to any powers duties or liabilities transferred by this Measure to the Council from the Vestry churchwardens or church trustees as the case may be shall subject to the provisions of this Measure and so far as circumstances admit be construed as if

any reference therein to the Vestry or the churchwardens or church trustees referred to the Council to which such powers duties or liabilities are transferred by this Measure and the said enactments shall be construed with such modifications as may be necessary for carrying this Measure into effect.

(3)—(i) This Measure shall not affect any enactment in any private or local Act of Parliament under the authority of which church rates may be made or levied in lieu of or in consideration of the extinguishment or of the appropriation to any other purpose of any tithes customary payments or other property or charge upon property which tithes payments property or charge previously to the passing of such Act had been appropriated by law to ecclesiastical purposes or in consideration of the abolition of tithes in any place or upon any contract made or for good or valuable consideration given and every such enactment shall continue in force in the same manner as if this Measure had not been passed.

(ii) For the purposes of this section “ecclesiastical purposes” shall mean the building rebuilding enlargement and repair of any church or chapel and any purpose to which by common or ecclesiastical law a church rate is applicable or any of such purposes.

**Powers of
Council.**

5. The Council of every parish shall have power to acquire (whether by way of gift or otherwise) any property real or personal for any ecclesiastical purpose affecting the parish or any part thereof with power to manage and administer any such property :

Provided that—

- (i) The power to acquire any such property shall (save in the case of chattels personal) be subject to the consent of the Diocesan Authority and the legal interest in any such property (except chattels personal) shall be vested in the Diocesan Authority of the diocese in which the parish is situate subject to all trusts debts and liabilities affecting the same and all persons concerned shall and are hereby required to make or concur in making such transfers (if any) as are requisite for giving effect to this enactment.

- (ii) The power of letting for more than one year and of sale and exchange of any such property (other than chattels personal) and the power of taking legal proceedings shall not be exercised without the consent of the Diocesan Authority.
- (iii) The accounts of all trusts administered by the Council shall be laid before the Diocesan Authority annually.

6. The Council of every parish shall have the following powers in addition to any powers conferred by the Constitution or otherwise by this Measure :—

Other
powers of
Council.

- (i) Power to frame an annual budget of moneys required for the maintenance of the work of the Church in the parish and otherwise and to take such steps as they think necessary for the raising collecting and allocating of such moneys.
- (ii) Power to make levy and collect a voluntary Church rate for any purpose connected with the affairs of the Church including the administrative expenses of the Council and the costs of any legal proceedings.
- (iii) Power jointly with the Incumbent to appoint and dismiss the parish clerk and sexton or any persons performing or assisting to perform the duties of parish clerk or sexton and to determine their salaries and the conditions of the tenure of their offices or of their employment but subject to the rights of any persons holding the said offices at the date of the commencement of this Measure.
- (iv) Power jointly with the Incumbent to determine the objects to which all moneys to be given or collected in Church shall be allocated subject to the directions contained in the Book of Common Prayer as to the disposal of money given at the offertory.
- (v) Power to make representations to the Bishop with regard to any matter affecting the welfare of the Church in the parish.

**Provisions
as to Eccle-
siastical
Charities.**

7.—(1) When the governing body of any parochial charity which is an ecclesiastical charity does not include any persons appointed by the Council of any parish affected thereby the Council of such parish may appoint additional members of such governing body not exceeding the number allowed by the Charity Commissioners in each case who shall hold office for such period not exceeding five years as the Council shall direct.

(2) For the purposes of this section the expression "parochial charity" means a charity the benefits whereof are confined to inhabitants of a single parish but not so as to include rights of patronage vested in trustees by or under any Act of Parliament or scheme or under any decree or order of Court or under any private trust.

(3) The accounts of all parochial ecclesiastical charities shall be laid before the Council of every parish affected thereby.

**Council to
keep
accounts.**

8. Subject and in addition to the provisions of Section III paragraph 4 of the Schedule to the Constitution every Council shall furnish to the annual Church Meeting an account made up to the 31st December immediately preceding such Meeting setting out the Council's income and expenditure during the year together with a statement of the funds and property if any remaining in their hands at the date of the account. Such account and statement having been duly audited shall together with a report upon the fabric goods and ornaments of the church be submitted for approval at such Meeting or at any adjournment thereof and the said account and statement if approved shall be signed by the chairman of the Meeting and shall be forthwith published and affixed on or near the principal door of the church and any other conspicuous place or places in the parish at the discretion of the Council.

**Rules of
procedure of
Council.**

9. The Rules of Procedure set forth in the Schedule to this Measure shall apply to all Councils except so far as the same may be varied by any Council with the consent of a central authority appointed for that purpose by the Church Assembly or until such central authority shall have been appointed with the consent of the Diocesan Conference. Subject as aforesaid every Council may from

time to time make bye-laws regulating their own procedure so that such bye-laws be not inconsistent with this Measure or with the Constitution or with any rules made by the Bishop for carrying this Measure into effect or with any rules hereafter made by the Church Assembly.

10. The chairman of the Council and the churchwardens of the parish if members of the Council shall be the Standing Committee of the Council and shall have power to transact the business of the Council between the meetings thereof subject to any directions given by the Council. Provided that the Council may by resolution appoint annually other members to serve on the Standing Committee in addition to the chairman of the Council and churchwardens.

Standing
Committee
of Council.

11. During the vacancy of the benefice and when the chairman is incapacitated by absence or illness or any other cause the vice-chairman of the Council shall act as chairman and have all the powers vested in the chairman.

Powers of
vice-chair-
man.

12. No proceedings of any Council shall be invalidated by any vacancy in the membership of the Council or by any defect in the qualification or election of any member thereof.

Validity of
proceedings.

13. In any parish in which one or more of the churchwardens have been hitherto elected by the Vestry such churchwarden or churchwardens shall be elected by the Vestry and the Parochial Church Meeting sitting together for this purpose. Such meeting shall be convened as if it were a Vestry Meeting and be held under the same conditions as to chairmanship voting and demand of a poll as a Vestry Meeting except that every person qualified to vote at such meeting shall be entitled to one vote only (other than the chairman's casting vote) on any question voted on at such meeting or at a poll held in connection therewith. The cost of a poll demanded by a candidate shall be borne by him.

Election of
church-
wardens.

14. The sidesmen of the parish shall be elected annually by the Parochial Church Meeting and the Incumbent and shall have all the rights duties and liabilities heretofore belonging to sidesmen by virtue of their office.

Election of
sidesmen.

Qualifica-
tions of
church-
wardens
sidesmen
and mem-
bers of
Council.

15.—(1) Without prejudice to existing qualifications any person who is eligible to the Council shall be eligible as churchwarden. No person whose name is not on the electoral roll shall be eligible as sidesman but all persons whose names are on the electoral roll shall be eligible.

(2) Without prejudice to any ground on which a churchwarden or sidesman may be disqualified or removed under the existing law a person shall be disqualified from being elected or being a churchwarden or sidesman or a member of a Council if a conviction order or finding becomes or has at any time become conclusive against him which if he were a clergyman would render him incapable of holding preferment under Section 1 of the Clergy Discipline Act 1892.

Powers of
Bishop.

16.—(1) If any difficulty arises with respect to the summoning holding or conduct of a meeting of the Council for which provision is not made in this Measure or by the Constitution or in the event of a Council and an Incumbent being unable to agree as to any matter in which their joint action is required the Bishop may give such directions as may appear to him to be necessary.

(2) The Bishop may subject to the provisions of this Measure and the Constitution make rules for carrying this Measure into effect within the diocese and for regulating all matters not dealt with by the Constitution relating to the preparation of the electoral roll.

(3) If any act required by this Measure to be done by any person is not done within such time as the Bishop may consider reasonable it may be done by or under the authority of the Bishop.

Short title
and extent.

17.—(1) This Measure may be cited as the *Parochial Church Councils (Powers) Measure 1921.*

(2) This Measure shall not extend to Scotland or Ireland or to such portions of Wales and Monmouthshire as are subject to the provisions of the Welsh Church Act 1914.

SCHEDULE.

RULES OF PROCEDURE.

1. The Council shall hold not less than four meetings in each year Meetings shall be convened by the chairman and if not more than four meetings are held they shall be at quarterly intervals so far as possible. Meetings of Council.
2. The chairman may at any time convene a meeting of the Council If he refuse or neglect to do so within seven days after a requisition for that purpose signed by not less than one-third of the members of the Council has been presented to him those members may forthwith convene a meeting. Power to call meetings.
3. Except as provided in Rule 7 at least ten clear days before any meeting of the Council notice thereof specifying the time and place of the intended meeting and signed by or on behalf of the chairman of the Council or the persons convening the meeting shall be posted at or near the principal door of the Parish Church. Notice of meeting.
4. Notices of motions may be sent in writing to the secretary by any member of the Council at any time Not less than seven days before the meeting a notice thereof specifying the time and place of the meeting signed by or on behalf of the secretary shall be sent to every member of the Council Such notice shall contain the agenda of the meeting including any motion of which notice has been received by the secretary. Notice of motions.
5. No business shall be transacted at any meeting of the Council unless at least one-third of the full number of members are present thereat and no business which is not specified in the agenda shall be transacted at any meeting except by the consent of three-quarters of the members present at the meeting. Quorum and agenda.
6. The business of a meeting of the Council shall be transacted in the order set forth in the agenda unless the Council by resolution otherwise determine. Order of business.
7. In case of sudden emergency and other special circumstances requiring immediate action by the Council a meeting may be convened by the chairman at not less than three days' notice in writing to the members of the Council but the quorum for the transaction of any business at such meetings shall be a majority of the then existing members of the Council and no business shall be transacted at such meeting except such as is specified in the notice convening the meeting. Short notice for emergency meetings.
8. The meetings of the Council shall be held at such place in the parish as the Council may direct or in the absence of such direction as the chairman may direct. Place of meeting.

Vote of
majority to
decide.

9. Subject to the foregoing Rules any motion proposed by any member of the Council present at a meeting shall be submitted to the meeting and shall be decided by a majority of votes of the members present and voting thereon.

Casting vote.

10. In case of an equal division of votes the chairman of the meeting shall have a second or casting vote.

Minutes.

11. The names of the members present at any meeting of the Council shall be recorded in the minutes and the names of those voting on each question on which a division is taken if the members composing either the majority or the minority so require shall be recorded so as to show how the vote of each member was given. Provided nevertheless that the vote on any question shall be by ballot if the meeting so decide.

Adjourn-
ments.

12. Any meeting of the Council may adjourn its proceedings to such time as may be determined at such meeting and to any place authorised under Rule 8.

Secretary of
Council.

13. The Council may appoint one of their number to act as secretary of the Council without remuneration. If no member is appointed so to act the Council shall appoint some other fit person with such remuneration (if any) as they shall think fit. The secretary shall have charge of the electoral roll and of all documents relating to current business of the Council. He shall be responsible for keeping the minutes shall record all resolutions passed by the Council and shall keep the secretary of the Diocesan Conference informed as to his address.

Treasurer of
Council.

14. The Council may appoint one or more of their number to act as treasurer solely or jointly without remuneration and failing such appointment the churchwardens if members of the Council shall act jointly as treasurers.

Power to
appoint
committees.

15. The Council may appoint committees for the purpose of the various branches of Church work in the parish and may include therein persons who are not members of the Council. The Incumbent shall be a member of all committees ex officio.

Interpreta-
tion.

16. Any question arising on the interpretation of these Rules shall be referred to the Bishop of the diocese and any decision given by him or by any person appointed by him on his behalf shall be final.

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